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General Comment

I am a computer industry professional with 25 years professional experience. I will be addressing specifically the subset of AI technologies known as "generative AI", and specifically large language models. (hereafter abbreviated "LLM").

The proliferation of generative AI technologies over the past few years has easily been the largest computer revolution I have witnessed in my career. However, with LLMs and image generators has come serious concerns about copyright and author's rights. I have witnessed LLMs and AI-driven image creators produce what would instantly be labeled copyright infringement if done by a human in response to a variety of prompts.

The system of copyright established in the US by acts of Congress, international treaties, and court precedent would normally demand that a database created by examining a copyrighted work and excerpting large portions of it is a derived work or the original, and must therefore be made with the permission of the copyright holder or fit into one of the clearly established "fair use" exceptions for copyright; not only is it not clear a priori that LLMs trained on copyrighted data qualify under any established fair use exception, the companies behind different LLMs aren't even attempting to make that argument.

Instead, AI promoters would argue that human content creators borrow and are inspired by each other all the time, and that LLMs should be permitted to do likewise; however, there is a noted difference between what happens in a human brain upon experiencing some media and what happens when it is fed into an LLM training algorithm.

Copyright law already provides for the concept that a robust culture requires that a large background of ideas, themes, and stories be available freely for anyone to use, repeat, and modify: this is the public domain. LLM manufacturers are free to train their models on as much public domain data as they can gather. They are also free to hire authors and artists to produce works-for-hire that can be used to train their LLMs. I have heard claims from AI proponents that this is insufficient, but have also not heard good explanations of why this well-established, proven-legal mechanism can't be used.

Currently, American media (books, movies, television) dominates the globe; the production of copyrighted material is an industry in which America is the undisputed master. Opening the door to allowing US-based LLM training to ignore copyright restrictions on source material encourages other countries to do the same, and would trade away an industry which we know that America currently dominates for a future industry that is still highly uncertain.

Rulemaking around LLM and other generative AI training should emphasize a robust respect for the restrictions of copyright, and respect for US copyright even when training AI models should be incorporated wherever possible into future international trade negotiations. Clauses emphasizing that copyright applies to model training should be offered by the US at future Berne Convention bureau meetings, and our representatives to the UN should lobby WIPO to adopt standards which protect US copyright from foreign LLM-based ripoffs.

The US can achieve leadership in AI, but attempting to do so by sacrificing an existing industry the US dominates (rather than pushing to make other countries' efforts respect established copyright rules) is short-sighted.